

HOUSE No. 2416

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to gambling addiction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>4/8/2025</i>

HOUSE No. 2416

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 2416) of Carole A. Fiola for legislation to establish a special commission (including members of the General Court) to make an investigation and study on problem gambling. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to gambling addiction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 32 of chapter 32A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended in line 16 by inserting after the word "screening," the
3 following:- including questions relating to gambling habits and frequency,

4 SECTION 2. Section 10Q of chapter 118E of the General Laws, as appearing in the 2022
5 Official Edition, is hereby amended in line 16 by inserting after the word "screening," the
6 following:- including questions relating to gambling habits and frequency,

7 SECTION 3. Section 47TT of chapter 175 of the General Laws, as appearing in the 2022
8 Official Edition, is hereby amended in line 17 by inserting after the word "screening," the
9 following:- including questions relating to gambling habits and frequency,

10 SECTION 4. Section 4MM of chapter 176G of the General Laws, as appearing in the
11 2022 Official Edition, is hereby amended in line 17 by inserting after the word "screening," the
12 following:- including questions relating to gambling habits and frequency,

SECTION 5. There is hereby established a special commission to consist of 1 member of the senate to be appointed by the president of the senate, who shall serve as co-chair, 1 member of the house of representatives to be appointed by the speaker of the house of representatives, who shall serve as co-chair, the commissioner of the department of public health, the commissioner of the department of mental health, the commissioner of insurance, and the director of Medicaid, or their designees, all of whom shall serve as ex officio members, and 13 persons to be appointed by the governor, 1 of whom shall be a representative from the Massachusetts Gaming Commission, 1 of whom shall be a representative from the Office of Problem Gambling Services, 1 of whom shall be a representative from the Massachusetts State Lottery, 1 of whom shall be a representative from the Massachusetts Council on Gaming and Health, 1 of whom shall be a representative from the Massachusetts Psychological Association who shall be a psychologist, 1 of whom shall be a representative from the Massachusetts Behavioral Health Partnership or a managed care organization or managed care entity contracting with MassHealth, 3 of whom shall be representatives of the Massachusetts Medical Society, including a family physician and a psychiatrist, 1 of whom shall be a representative from the Massachusetts Association of Health Plans and 3 of whom shall be representatives from commercial health insurance carriers or managed care organizations doing business in the commonwealth, is hereby established for the purpose of making an investigation and study relative to problem gambling, including, but not limited to: (i) an assessment of current research on the subject and whether there exist evidence-based, best or promising practices on the prevention, detection and treatment of problem gambling; (ii) a review of current policies and practices with respect to medical screenings for problem gambling, including the frequency and location of screenings and training of personnel administering the screenings, the availability of

reimbursement and issues relative to medical necessity and third-party coverage; (iii) provision of assistance to the department of public health, other state agencies and organizations in the development of professional and public educational materials and programs on problem gambling, in the development of referral lists for problem gambling treatment, building on existing resources and in the designation of authorized validated screening tools; (iv) provision of assistance to the department of public health, other state agencies and organizations relative to applications for federal funding to support efforts consistent with the mission and purpose of the commission; and (v) any other matters that the commission considers relevant to the fulfillment of its mission and purpose.

The commission shall provide guidance and advice to the governor, the general court and the secretary of health and human services relative to current research on problem gambling including, but not limited to, best and promising practices in the prevention, detection and treatment of problem gambling and recommend policies, including legislation, to promote greater public awareness, screening and treatment of problem gambling. The special commission may conduct public hearings, forums or meetings to gather information and to raise awareness of problem gambling, including the sponsorship of or participation in statewide or regional conferences.

The commission shall hold its first meeting not later than 30 days after the effective date of this act and shall meet not less frequently than monthly thereafter. The commission shall file an annual report at the end of each state fiscal year with the governor and the clerks of the house of representatives and the senate, who shall forward the same to the joint committee on public health and the joint committee on ways and means, along with recommendations, if any, together with drafts of legislation necessary to carry those recommendations into effect. The first such

59 report shall be due not later than June 30, 2026. The special commission may file such interim
60 reports and recommendations as it considers appropriate.